

Policies and Procedures

Standards, Codes of Conduct

Students can access campus rules and regulations, including the student code of conduct, alcohol policy, public safety and parking policies, the distribution of literature and free speech policy, and a variety of others by visiting the school's policy website. We encourage all students to review the website and expect that students know and understand the campus policies, rules and regulations as well as their rights as a student. Questions and comments regarding the above-mentioned policies can be directed to the Dean of Students located in the Student Life Office in the Ben Parker Student Center.

For emphasis, the following policies are included or identified in this section:

- Student Honor Code
- Policy on Academic Integrity/Misconduct
- Policy Prohibiting Sexual Misconduct, Discrimination, and Retaliation
- Alcohol and Other Drugs Education and Prevention Policy
- Electronic Communications (Email) Policy
- Student Complaint Process
- Access to Student Records
- Posthumous Degree Awards
- Equal Opportunity, Equal Access, and Affirmative Action
 - Office of Institutional Equity & Title IX
 - SpeakUP@Mines

Please note: Any policy or procedure updates during the term will be reflected in the Mines Policy Library and those versions shall control.

Student Honor Code

1.0 PREAMBLE

The students of Colorado School of Mines have adopted the following Student Honor Code in order to establish a high standard of student behavior at Mines. The code may only be amended through a student referendum supported by a majority vote of the Mines student body. Mines students shall be involved in the enforcement of the code through their participation in the Student Conduct Appeals Board.

2.0 CODE

Mines students believe it is our responsibility to promote and maintain high ethical standards in order to ensure our safety, welfare, and enjoyment of a successful learning environment. Each of us, under this code, shall assume responsibility for our behavior in the area of academic integrity. As a Mines student, I am expected to adhere to the highest standards of academic excellence and personal integrity regarding my schoolwork, exams, academic projects, and research endeavors. I will act honestly, responsibly, and above all, with honor and integrity in all aspects of my academic endeavors at Mines. I will not misrepresent the work of others as my own, nor will I give or receive

unauthorized assistance in the performance of academic coursework. I will conduct myself in an ethical manner in my use of the library, computing center, and all other school facilities and resources. By practicing these principles, I will strive to uphold the principles of integrity and academic excellence at Mines. I will not participate in or tolerate any form of discrimination or mistreatment of another individual.

Policy on Academic Integrity/Misconduct

1.0 ACADEMIC INTEGRITY

Colorado School of Mines (Mines) affirms the principle that all individuals associated with the Mines academic community have a responsibility for establishing, maintaining, and fostering an understanding and appreciation for academic integrity. In broad terms, this implies protecting the environment of mutual trust within which scholarly exchange occurs, supporting the ability of the faculty to fairly and effectively evaluate every student's academic achievements, and giving credence to the university's educational mission, its scholarly objectives, and the substance of the degrees it awards. The protection of academic integrity requires there to be clear and consistent standards, as well as confrontation and sanctions when individuals violate those standards. Colorado School of Mines desires an environment free of any and all forms of academic misconduct and expects students to act with integrity at all times.

2.0 POLICY ON ACADEMIC MISCONDUCT

Student academic misconduct arises when a student violates the principle of academic integrity and/or when a student aids and abets in the commission of academic misconduct. Academic misconduct may also occur when a student is negligent in their reasonable responsibilities as a student to be aware of or proactively confirm or clarify appropriate conduct with coursework, assignments or exams, and subsequently proceeds in a manner befitting of misconduct. Such behavior erodes mutual trust, distorts the fair evaluation of academic achievements, violates the ethical code of behavior upon which education and scholarship rest, and undermines the credibility of the university.

Because of the serious institutional and individual ramifications, student misconduct arising from violations of academic integrity is not tolerated at Mines. If a student is found to have engaged in such misconduct sanctions such as change of a grade, loss of institutional privileges, or academic suspension or dismissal may be imposed.

The Dean of Students Office administers this faculty-approved policy. Within the Dean of Students Office, two administrators will facilitate the separate aspects of the policy, including the initial resolution and appeal process, in order to remain impartial with respect to potential appeals while simultaneously providing procedural guidance to faculty and students.

Forms of Misconduct. As a guide, some of the more common forms of academic misconduct are noted below. This list is not intended to be all-inclusive; rather, the list is illustrative of practices the Mines faculty have deemed inappropriate.

1. **Dishonest Conduct** – general conduct unbecoming a scholar. Examples include issuing misleading statements; withholding pertinent information; submitting previously graded work as new and/or original without acknowledgment and permission; not fulfilling, in a timely fashion, previously agreed to projects or activities; and verifying as true things that are known to the student not to be true or verifiable.

2. **Plagiarism** – presenting the work of another as one's own. This is usually accomplished through the failure to acknowledge the borrowing of ideas, data, or the words of others. Examples include submitting as one's own work the work of another student, a ghost writer, or a commercial writing service; quoting, either directly or paraphrased, a source without appropriate acknowledgment; and using figures, charts, graphs, or facts without appropriate acknowledgment. Inadvertent or unintentional misuse or appropriation of another's work is nevertheless plagiarism.
3. **Falsification/Fabrication** – inventing or altering information. Examples include inventing or manipulating data or research procedures to report, suggest, or imply that particular results were achieved from procedures when such procedures were not actually undertaken or when such results were not actually supported by the pertinent data; false citation of source materials; reporting false information about practical, laboratory, or clinical experiences; falsifying attendance or participation; submitting false excuses for absence, tardiness, or missed deadlines; and altering previously submitted examinations.
4. **Tampering** – interfering with, forging, altering, or attempting to alter university records, grades, assignments, or other documents without authorization. Examples include using a computer- or false-written document to change a recorded grade; altering, deleting, or manufacturing any academic record; and gaining unauthorized access to a university record by any means.
5. **Cheating** – using or attempting to use unauthorized materials or aid with the intent of demonstrating academic performance through fraudulent means. Examples include copying from another student's paper or receiving unauthorized assistance on a homework assignment, quiz, test, or examination; using books, notes, or other devices such as calculators, PDAs, and cell phones, unless explicitly authorized; acquiring without authorization a copy of the examination before the scheduled examination; and copying reports, laboratory work, or computer files from other students. Authorized materials are those generally regarded as being appropriate in an academic setting, unless specific exceptions have been articulated by the instructor.
6. **Impeding** – negatively impacting the ability of other students to successfully complete course or degree requirements. Examples include removing pages from books and removing materials that are placed on reserve in the library for general use; failing to provide team members necessary materials or assistance; and, knowingly disseminating false information about the nature of a test or examination.
7. **Sharing Work** – giving or attempting to give unauthorized materials or aid to another student. Examples include allowing another student to copy your work; giving unauthorized assistance on a homework assignment, quiz, test, or examination; providing, without authorization, copies of examinations before the scheduled examination; posting work on a website for others to see; and sharing reports, laboratory work or computer files with other students.

Additionally, individual courses may specify appropriate and/or inappropriate scholastic conduct as long as course-specific guidance is not in conflict with this senior university misconduct policy and is well known by way of advanced written distribution to all students enrolled (e.g., published course syllabus). Students are encouraged to seek prior authorization and permission to use online homework or tutoring sites including, but not limited to, CHEGG. The Academic Misconduct Policy prohibits unauthorized help or assistance. Unauthorized use of CHEGG or similar sites to the benefit of studying, homework, or examinations

may result in academic misconduct investigations/sanctions. Viewing, uploading, and downloading material is not tolerated when the course material was illegally or improperly uploaded. Contact your faculty member to proactively seek permission or clarity.

Allegations of misconduct brought forward by faculty must fall within with the aforementioned seven examples of common misconduct and/or be specifically and explicitly addressed in the published course materials.

3.0 PROCEDURES FOR ADDRESSING ACADEMIC MISCONDUCT

Faculty members and thesis committees have discretion to address and resolve misconduct matters in a manner that is commensurate with the infraction and consistent with the values of the Institution. This includes imposition of appropriate academic sanctions for students involved in academic misconduct. However, in order to maintain consistency when handling such issues, if a member of the Mines' community has grounds for suspecting that a student or students have engaged in academic misconduct, they have an obligation to act on this suspicion by utilizing the following procedure:

3.1 Notify the Dean of Students Office. Upon suspicion of misconduct, it is the faculty member's responsibility to email the Dean of Students Office (deanofstudents@mines.edu). The Dean of Students Office will provide procedural guidance to the faculty member, including pre-written email templates which the faculty may use.

Student names may be disclosed at this time, but are not necessary. Prepared sample templates and procedural guidance will consider and include appropriate accessibility language to ensure an accessible process for students and faculty, alike.

3.2 Notify and Meet with Student(s). Following correspondence with the Dean of Students Office, the faculty member or thesis committee representative must meet with and inform the student(s) of the suspicions/allegations and potential charge of academic misconduct within 10 business days of suspecting misconduct.

This meeting allows the student the opportunity to give their perspective or explanation prior to any decision being made as to whether or not misconduct occurred. The student should be aware of the subject of the meeting and the alleged misconduct at the time of scheduling. The meeting also allows the faculty member to have a conversation with the student(s) in an effort to educate them on appropriate conduct.

Following this meeting (at end of meeting or afterward and within the prescribed timeline), the faculty member should inform the student of their decision as to whether or not misconduct occurred. In the instance where the faculty member(s) believe misconduct occurred, the student should be explicitly informed of the nature of the misconduct (e.g., cheating, plagiarism, etc.).

The meeting can be done via telephone if needed, but a face-to-face meeting between the faculty member and student is preferred. It is recommended, but not required, that the faculty invite a neutral, silent colleague to the meeting as an impartial witness. If the student or faculty member is unable to meet because of pre-existing commitments or unforeseen priorities, the ten-day timeline may be temporarily suspended with mutual written agreement of faculty and student(s), and written approval by the Dean of Students Office prior to expiration of the deadline.

3.3. Actions Taken; Circumstances. The circumstances of the academic misconduct dictate the process to be followed:

3.3.1 Regular Coursework. In the case of an allegation of academic misconduct associated with **regular coursework** (including exams), if after talking with the student, the faculty member finds the student is responsible for academic misconduct the faculty member should:

- Report the violation via this form (or via deanofstudents@mines.edu) within five business days of meeting with the student (as outlined above – see 3.1). The reporting form will collect necessary information on the student(s), violation(s), and course details. Report of a violation should detail the nature of the misconduct (e.g., cheating, plagiarism, etc.). A submitted form will automatically inform the Dean of Students Office.
- The Dean of Students Office will communicate the resolution in writing to the student, the faculty member(s), appropriate members of Academic Affairs, the Office of Graduate Studies (if applicable), the student's advisor, and any additional appropriate parties including Athletics, course coordinators, or the Registrar's Office. The Dean of Students will keep official records on all students with academic misconduct violations. Disciplinary action/sanctioning for misconduct with regular coursework:
 - First Offense: Zero credit (or no points) on the assignment/exam/effort. Educational sanctioning as prescribed and facilitated by the Dean of Students Office. Notation of first offense in disciplinary record.
 - Failure to comply with educational sanctioning expectations and timeline will result in immediate acceleration of offense to sanctioning prescribed with second offense (F in course and inability to withdraw). Additionally, the student's disciplinary standing will also be upgraded to second offense.
 - With first offense, faculty may choose to provide a restorative credit assignment or make-up quiz or exam wherein students can work to recover credit penalized as part of misconduct sanctioning.
 - Second Offense: F in the course and inability to withdraw. Notation of second offense in disciplinary record.
 - Third or Greater Offense: F in the course. Suspension from school for one-year minimum (calendar year). "Suspension as a result of Academic Misconduct" permanently noted on university transcript. Return to Mines not guaranteed, and only possible by way of Mines Readmissions Committee.

3.3.2 Activities Not Part of Regular Coursework. In the case of an allegation of academic misconduct associated with **activities not a part of regular coursework** (e.g., an allegation of cheating on a comprehensive examination or

academic misconduct in connection with a graduate thesis project), if after talking with the student, faculty member(s) finds the student is responsible for misconduct the faculty should:

- Report the violation using this form (or via deanofstudents@mines.edu) within five business days of meeting with the student (as outlined above – see 3.1). The reporting form will collect information on the student(s), violation(s), and other necessary course information. (e.g. cheating, plagiarism, etc.). The Dean of Students Office will communicate the resolution in writing to the student, the faculty member(s), appropriate members of Academic Affairs, the Office of Graduate Studies (if applicable), the student's advisor, and any additional appropriate parties including Athletics, course coordinators, or the Registrar's Office. The Dean of Students will keep official records on all students with academic misconduct violations.
- Assign an outcome to the activity that constitutes failure. If appropriate, the student's advisor may also assign a grade of PRU (unsatisfactory progress) for research credits in which the student is enrolled. Regular institutional procedures resulting from either of these outcomes are then followed. Faculty members may impose a lesser penalty if the circumstances warrant, however, the typical sanction is failure.

3.3.3 Research Activities. In the case of an allegation of academic misconduct associated with **research activities**, investigation and resolution of the misconduct is governed by the institution's Research Integrity Policy. The Research Integrity Policy is available as section 10.3 of the Faculty Handbook. If, after talking with the student, the faculty member feels the student is responsible for misconduct of this type, the faculty member should proceed as indicted in the Research Integrity Policy. If appropriate, the student's advisor may also assign a grade of PRU for research credits in which the student is enrolled. Regular institutional procedures resulting from this grade assignment are then followed.

3.4 Student Reporting. Students who suspect other students of academic misconduct should report the matter to the appropriate faculty member, the appropriate department head/program director, the Dean of Undergraduate Studies, the Dean of Graduate Studies, or the Dean of Students. The information is then provided to the faculty member concerned.

4.0 STUDENT ACADEMIC MISCONDUCT APPEAL PROCESS

4.1 Purpose

A student may appeal a decision within certain timelines and under specific criteria. For all charges of academic misconduct, upon notification of a finding of academic misconduct and the associated penalties, the student may appeal the decision of the faculty member.

An appeal is not a second hearing of the case, but rather it is a review of the procedures followed and information presented to determine if the process provided was in accordance with the policy

or if the decision was unsupported by the evidence, as set forth below.

This appeal process governs all requests for appeal related to violations of the Academic Integrity/Misconduct Policy. Grade appeals, residency appeals, student conduct appeals, and appeals related to research misconduct are handled through separate processes. Please see the Mines Policy webpage for more information on those processes.

4.2 Grounds for Appeal

An appeal request will be considered only if it includes the specific grounds for an appeal and the rationale that support the selected grounds. The three items listed below are the only acceptable grounds for an appeal:

- **Due Process.** To determine whether the meeting with the faculty member and the process followed was conducted fairly and in conformity with the prescribed procedures. Any procedural errors must have been so substantial as to effectively deny the student a reasonable opportunity to prepare and present information about an alleged policy violation. The student should be able to show that there would have been a different outcome if the procedural error had not occurred. Minor deviations that do not materially affect the outcome are not a basis for sustaining an appeal.
- **New Information.** To consider information or other relevant facts sufficient to alter a decision because such information was not known by the student at the time of the original conduct meeting with the faculty member.
- **Unsupported Decision.** To determine whether the decision reached by the faculty member was supported using the preponderance of evidence standard to establish that a violation of the policy occurred. This ground for appeal requires the student to show that no reasonable person could have determined that the student was responsible or could have imposed the sanctioned issued based on the available evidence.

4.3 Submitting an Appeal Request

Decisions reached by a faculty member may be appealed by the student. A student may file an appeal by completing a Student Conduct Appeal form and submitting it to the Dean of Students Office by the date stated on the original decision letter (typically seven business days). This form is available online at <https://www.mines.edu/policy-library/student/> and in person at the Student Life Office. It is the student's obligation to complete the form in its entirety and provide any and all materials that they wish to have considered at the time of the appeal submission. Incomplete form, late submissions, or revised requests will not be accepted.

If the student's appeal request is not received by the designated deadline, the decision of the faculty member is final and no further appeal will be permitted.

4.3.1 Appeal Request Review. Once an appeal request is received, it is forwarded to the Dean of Students. Within five business days, the Dean of Students will review the request to determine if the acceptable grounds for an appeal have been met, if the appeal has been timely filed, and if the request is

complete. After review of the request, the Dean of Students will take one of the following actions:

- a. Accept the Appeal Request – See section 4.3.2 below
- b. Deny the Appeal Request – The Dean of Students will notify the student that the appeal has been denied and the basis for the denial. An appeal that does not set forth sufficient grounds for appeal (as described in section 2.0 above) will be denied. In such cases, the original decision of the faculty member is considered binding upon all involved and the matter will be considered closed unless the student can provide evidence that the Dean of Students made an arbitrary decision without fully considering the information presented. If that is the case, the student requesting the appeal must notify the associate vice president of Student Life in writing within two business days and request that the appeal be reviewed again by the associate vice president of Student Life. The associate vice president of Student Life will review the request within two business days. The associate vice president of Student Life will either accept the appeal request (see section 3.2) or deny the appeal request. If the associate vice president of Student Life denies the appeal request, the decision is final and considered binding upon all involved.

4.3.2 Accepted Appeal. Once the appeal request has been accepted by the Dean of Students (or associate vice president of Student Life), the Dean of Students will proceed as follows:

- a. Notify the student and the faculty member that the appeal has been accepted and the appeal will proceed.
- b. Schedule a date and time for the appeal meeting to be held.
- c. Provide the student and faculty member with an overview of the appeal process and allow them to submit any additional information related to the academic misconduct charge that they would like to be included in the appeal meeting.
- d. Forward the appeal and all supporting documents to the participating members of the Student Conduct Appeals Board.

4.4 Student Conduct Appeals Board

The Student Conduct Appeals Board ("Board") consists of 16 members of the campus community, including six students, six faculty, and four staff, plus the Dean of Students as the chair. A minimum of three Board members (including one student and one faculty member) are required for all appeal meetings.

Upon acceptance of an appeal, the list of the members of the Student Conduct Appeals Board will be provided to the student and the faculty member. Both the student and the faculty member may each request the removal of one of the Board members' from participating in the appeal meeting. Upon receipt of such requests, the Dean of Students will remove the potential member from participating.

Once an appeal request is accepted and the appeal meeting scheduled, non-excluded Board members will be contacted and invited to participate at the appeal meeting. Appeals Board members have an affirmative obligation to excuse themselves if they have a conflict of interest. The Dean of Students will provide participating Board members with all pertinent information regarding the incident and appeal, including but not limited to the student's education records, the appeal request, and other information submitted by the student and the faculty member.

4.5 Appeal Meeting

The student and the faculty member will meet with the participating Student Conduct Appeals Board members during the appeal meeting. Both the student and the faculty member will be allowed to provide a brief statement and then answer questions from the Appeals Board members. The student and faculty member will not be permitted to question one another. All questioning will be done by the Board members. The Board members may, at their discretion, meet with any appropriate witnesses during the meeting.

After all questioning has occurred, the student and faculty member will be excused.

4.5.1 Recordings. If requested by the student or faculty member, one verbatim record, such as a recording, will be made. This recording shall be the property of Mines. If such a recording is made, a student wishing to obtain a copy of the recording must submit a request to the Dean of Students. This may be done via mail, email, or in person. Once the request has been received, the Dean of Students will provide both parties with a copy of the recording.

4.5.2 Advisor. The appeal meeting is an internal university judicial matter. Students are allowed to have one individual advisor (parent, lawyer, friend etc.) in the room during the appeal meeting. The advisor is not allowed to speak on the student's behalf or address the committee during the appeal meeting. He/she is only allowed to hear the information being provided to the committee, confer with the student, and offer the student advice. This individual is not permitted to represent the student or speak on the student's behalf during the appeal meeting.

4.6 Pending Action

Throughout the entire appeal process, and while the decision of the Dean of Students or the Student Conduct Appeals Committee is pending, the student must continue to comply with all conditions of the original decision made by the faculty member. Unless otherwise specified in the original written notification of suspension, a student may continue to attend classes while the appeal is pending.

4.7 Decision

At the conclusion of the appeal meeting, the Student Conduct Appeals Board will make one of the following decisions:

1. Reverse the decision of the faculty member and withdraw the charge from the student's record.
2. Affirm the decision of the faculty member and uphold the sanction(s).
3. Forward the case to the Office of Academic Affairs for further consideration: the Student Conduct Appeals Board believes that additional matters implicated in

the appeal should be reviewed and considered which could include increasing or decreasing the sanctions imposed or addressing additional issues that arose through the appeal process. Recommendations for appropriate sanctions should be made by the Student Appeals Committee to the Office of Academic Affairs. The additional review and consideration will be conducted by the Dean of Undergraduate Studies or Dean of Graduate Studies, depending on the academic standing of the student requesting the appeal. The Office of Academic Affairs staff member will make a final decision that will be communicated to the student within 10 business days.

The decision made will be communicated to the student and faculty member within 24 hours of the conclusion of the appeal meeting.

The decision issued by the Student Conduct Appeals Board or the Office of Academic Affairs (in matters that are forwarded for further consideration) is final and shall be considered binding upon all involved, to which no additional appeals are permitted.

For the most up-to-date version of this procedure and appeal request forms, please see the student section of the policy website.

POLICY PROHIBITING UNLAWFUL DISCRIMINATION

1.0. BACKGROUND AND PURPOSE

Colorado School of Mines ("Mines") is committed to inclusivity and access for all persons and strives to create learning and workplace environments that exclude all forms of unlawful discrimination, harassment, and retaliation. Mines' commitment to nondiscrimination, affirmative action, equal opportunity, and equal access is reflected in the administration of its policies, procedures, programs, and activities, as well as its efforts to achieve a diverse student body and workforce.

As part of this commitment, the Board of Trustees of Colorado School of Mines promulgates this policy pursuant to the authority conferred by §23-41-104(1), C.R.S., and in accordance with applicable federal and Colorado civil rights laws.

2.0 POLICY STATEMENT

Mines prohibits discrimination and harassment on the basis of age, ancestry, creed, marital status, race, color, ethnicity, religion, national origin, sex, gender, gender identity, gender expression, disability, sexual orientation, genetic information, veteran status, or military service. This prohibition applies to all students, employees, contractors, visitors, and volunteers.

Mines will not tolerate retaliation against Mines community members for filing complaints regarding or implicating any of these protected statuses, or otherwise participating in investigations regarding such complaints.

It is a violation of this policy to intentionally submit a false complaint or file a complaint that is not made in good faith or to provide materially false or misleading information during an investigation.

3.0 RESPONSIBILITIES

The Board of Trustees directs the president, or the president's delegates to develop, manage, and maintain appropriate procedures and resources to implement this policy.

4.0 COMPLIANCE/ENFORCEMENT

Violators of this policy will be subject to disciplinary action, up to and including termination of employment, expulsion, and termination of contractual relationships with Mines.

5.0 EXCLUSIONS/DISCLAIMER

No one filing a complaint under this policy will be permitted to simultaneously file a grievance under the State of Colorado Personnel Board Rules or Colorado School of Mines Faculty Handbook against the same individual and arising out of the same event(s).

6.0 RESOURCES OR ATTACHMENTS

- Equal Pay Act of 1963
- Titles IV, VI, and VII of the Civil Rights Act of 1964
- Title IX of the Education Amendments of 1972
- Rehabilitation Act of 1973 (sections 503 and 504)
- Vietnam Era Veterans Readjustment Assistance Act
- Age Discrimination Act
- Pregnancy Discrimination Act
- Age Discrimination in Employment Act of 1976
- Americans with Disabilities Act (as amended)
- Executive Order 11246
- Jeanne Clery Disclosure of Campus Security Policy and Crime Statistics Act of 1991
- Uniform Services Employment and Reemployment Act
- Violence Against Women Act of 1994
- Violence Against Women Reauthorization Act of 2013
- Colorado Anti-Discrimination Act
- Statement of Equal Opportunity, Access, and Nondiscrimination (<https://www.mines.edu/equal-opportunity/>)
- Title IX Office website: <https://www.mines.edu/title-ix/>
- Human Resources website: <https://www.mines.edu/human-resources/>

KEY WORDS

Discrimination, harassment, age, ancestry, creed, marital status, race, color, ethnicity, religion, national origin, sex, gender, gender identity, gender expression, disability, sexual orientation, genetic information, veteran status, military service

HISTORY & REVIEW CYCLE

For a complete policy statement and the most up-to-date procedures, please see the policy website. Promulgated by the Mines Board of Trustees on March 13, 1992. Amended by the Mines Board of Trustees on June 10, 1999; June 22, 2000; June 7, 2003; August 14, 2007; August 29, 2014; February 8, 2019; and August 14, 2020.

Alcohol and Other Drugs Education and Prevention Policy

In compliance with the federal government's Drug Free Schools and Communities Act, there are community standards and potential consequences at Colorado School of Mines pertaining to the illegal use of alcohol or drugs. The unlawful possession, use, or distribution of illicit drugs and the unlawful or unauthorized use of alcohol by employees and

students at Mines will result in disciplinary action consistent with School policies, and local, state, and federal laws.

While Colorado's constitution allows for specific legal use, possession, and growing of marijuana under certain circumstances, because of Mines' status as a federal contractor and grant recipient and because marijuana use is still prohibited under federal law, the use, possession, and growing of marijuana on campus is prohibited. Student use of alcohol and other drugs (including marijuana) that results in an impaired ability to perform academically, or behavior that violates the Code of Conduct constitutes a violation of this policy.

For more information, or for further policy details, please see the Alcohol and Other Drugs Education and Prevention Policy and the Colorado Drug Law Summary in the Policy Library, student section. Also see the Residence Life Policies and the Annual Campus Security and Fire Safety Report for more on programming and requirements.

Electronic Communications (Email) Policy

1.0 BACKGROUND AND PURPOSE

Communication to students at Colorado School of Mines (Mines) is an important element of the official business of the university. It is vital that Mines have an efficient and workable means of getting important and timely information to students. Examples of communications that require timely distribution include information from Fiscal Services, the Registrar's Office, or other offices on campus that need to deliver official and time-sensitive information to students. (Please note that emergency communications may occur in various forms based on the specific circumstances).

Electronic communication through email and Trailhead Portal announcements provides a rapid, efficient, and effective form of communication. Reliance on electronic communication has become the accepted norm within the Mines community. Additionally, utilizing electronic communications is consistent with encouraging a more environmentally conscious means of doing business and encouraging continued stewardship of scarce resources. Because of the widespread use and acceptance of electronic communication, Mines is adopting the following policy regarding electronic communications with students.

2.0 POLICY

It is the policy of Colorado School of Mines that official university-related communications with students will be sent via Mines' internal email system or via campus or targeted Trailhead announcements. All students will be assigned a Mines email address and are expected to periodically check their Mines assigned email as well as their Trailhead portal page. It is also expected that email sent to students will be read in a timely manner. Communications sent via email to students will be considered to have been received and read by the intended recipients.

*For a complete policy statement and associated procedures please see the policy website, information technology section. **The policy website shall be considered the official & controlling Mines' policy.***

Nothing in the procedures should be construed as prohibiting university-related communications being sent via traditional means. Use of paper-based communication may be necessary under certain circumstances or may be more appropriate to certain circumstances. Examples of such communications could include, but not be limited to disciplinary notices, fiscal services communications, graduation information, and so forth.

Questions about this policy may be directed to either of the following:

Registrar's Office at 303-273-3200 or registrar@mines.edu; or

Computing, Communications & Information Technologies (CCIT) at 303-273-3431 or complete a request form at the Mines Help Center.

Student Complaint Process

Students are consumers of services offered as part of their academic and co-curricular experience at Colorado School of Mines. If a student needs to make a complaint, specific or general, about their experience at Mines, he or she should contact the Office of the Dean of Students at 303-273-3288. If the issue is related to discrimination, sexual harassment, or sexual violence, there are specific procedures that will be followed (these are noted and linked in this section, or contact the Director, Title IX & Equity, 303-273-2558. Additional contacts listed in the Title IX section below.) For all other concerns, the student should begin with the Dean's Office if interested in making any complaint. All complaints, as well as the interests of all involved parties, will be considered with fairness, impartiality, and promptness while a complaint is being researched and/or investigated by the school.

Access to Student Records

The Family Educational Rights and Privacy Act (FERPA) gives students who reach the age of 18 or who attend a postsecondary institution the right to inspect, review, and request amendment their own Education Records. At the postsecondary level, parents have no inherent rights to inspect, review, or request amendment to a student's Education Records. Mines will provide an annual notice of rights under FERPA to students currently attending the University. Mines may disclose information contained in a student's Education Record as set forth in the Mines Notice of Student Rights Under the Family Educational Rights and Privacy Act of 1974. Mines will securely destroy Education Records that are no longer required to be maintained using a method that renders the content irretrievable and illegible.

Contact information for FERPA complaints:

Family Policy Compliance Office
U.S. Department of Education
400 Maryland Avenue, SW
Washington, D. C. 20202-4605

Directory Information. The school maintains lists of information which may be considered directory information as defined by the regulations. This information includes name, current and permanent addresses and phone numbers, date of birth, major field of study, dates of attendance, part- or full-time status, degrees awarded, last school attended, participation in officially recognized activities and sports, class, academic honors, university email address, and photo including student ID picture. Students who desire that this information not be printed or released must so inform the registrar before the end of the first two weeks of the fall semester for which the student is registered. Information will be withheld for the entire academic year unless the student changes this request. The student's signature is required to make any changes for the current academic year. The request must be renewed each fall term for the upcoming year. The following student records are maintained by Colorado School of Mines at the various offices listed below:

1. General Records: Registrar and Graduate Dean
2. Transcript of Grades: Registrar
3. Computer Grade Lists: Registrar
4. Encumbrance List: Controller and Registrar

5. Academic Probation/Suspension List: Dean of Students and Graduate Dean
6. Advisor File: Academic Advisor
7. Option/Advisor/Enrolled/ Minority/Foreign List: Registrar, Dean of Students, and Graduate Dean
8. Externally Generated SAT/GRE Score Lists: Graduate Dean
9. Financial Aid File: Financial Aid (closed records)
10. Medical History File: School Physician (closed records)

Access to Records by Other Parties. Colorado School of Mines will not permit access to student records by persons outside the school except as follows:

1. In the case of open record information as specified in the section under Directory Information.
2. To those people specifically designated by the student. Examples would include request for transcript to be sent to graduate school or prospective employer.
3. Information required by a state or federal agency for the purpose of establishing eligibility for financial aid.
4. Accreditation agencies during their on-campus review.
5. In compliance with a judicial order or lawfully issued subpoena after the student has been notified of the intended compliance.
6. Any institutional information for statistical purposes which is not identifiable with a particular student.
7. In compliance with any applicable statute now in effect or later enacted. Each individual record (general, transcript, advisor, and medical) will include a log of those persons not employed by Colorado School of Mines who have requested or obtained access to the student record and the legitimate interest that the person has in making the request.

The school discloses education records without a student's prior written consent under the FERPA exception for disclosure to school officials with legitimate educational interests. A school official is a person employed by the school in an administrative, supervisory, academic or research, or support staff position (including law enforcement unit personnel and health staff); a person or company with whom the school has contracted as its agent to provide a service instead of using school employees or officials (such as an attorney, auditor, or collection agent); a person serving on the Board of Trustees; or a student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks.

A school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibilities for the school.

See also <https://www.mines.edu/policy-library/ferpa-policy/>.

Posthumous Degree Awards

The faculty may recognize the accomplishments of students who have died while pursuing their educational goals. If it is reasonable to expect that the student would have completed his or her degree requirements, the faculty may award a baccalaureate or graduate degree that is in all ways identical to the degree the student was pursuing. Alternatively, the faculty may award a posthumous BS, MS, or PhD to commemorate students who distinguished themselves while at Mines by bringing honor to the school and its traditions.

Consideration for either of these degrees begins with a petition to the Faculty Senate from an academic department or degree granting unit. The petition should identify the degree sought. In the event that the degree-granting unit is seeking a conventional degree award, the petition should include evidence of the reasonable expectations that the student would have completed his or her degree requirements. For a baccalaureate, such evidence could consist of, but is not limited to:

- The student was a senior in the final semester of coursework,
- The student was enrolled in courses that would have completed the degree requirements at the time of death
- The student would have passed the courses with an acceptable grade, and would likely have fulfilled the requirements of the degree.

For a Graduate Degree:

- For graduate degrees not requiring a research product, the student was enrolled in courses that would have completed the degree requirements at the time of death, would have passed the courses with an acceptable grade, and would likely have fulfilled the requirements of the degree.
- For graduate degrees requiring a research product, the student had completed all course and mastery requirements pursuant to the degree and was near completion of the dissertation or thesis, and the student's committee found the work to be substantial and worthy of the degree.

The requirement that there be a reasonable expectation of degree completion should be interpreted liberally and weight should be given to the judgment of the departmental representative(s) supporting the petition.

In the event that the degree being sought is a posthumous BS, MS, or PhD, the petition should include evidence that the student conducted himself or herself in the best tradition of a Mines' graduate and is therefore deserving of that honor.

Equal Opportunity, Equal Access, and Affirmative Action

The institution's Statement of Equal Opportunity and Equal Access to Educational Programs and associated staff contacts can be found in the Welcome Section of this Catalog as well as on the policy webpage. Colorado School of Mines maintains an affirmative action plan, which is available at the Arthur Lakes Library, the Dean of Students Office, and the Office of Human Resources.

Office of Institutional Equity and Title IX

Pursuant to Title IX of the Education Amendments of 1972, 20 U.S.C. § 1681, and 34 CFR Part 106, Mines does not discriminate on the basis of sex in any of its education programs or activities, including admissions and employment. All inquiries about the application of Title IX or Part 106 may be directed to Mines Title IX Coordinator or the Assistant Secretary of Education, U.S. Department of Education, or both:

Mines Title IX Coordinator is Carole Goddard.

Office: Title IX House, 1706 Illinois Street

Email: titleix@mines.edu

Phone: 303-273-3260

Website: <https://www.mines.edu/institutional-equity-title-ix/>

The Policy Prohibiting Sexual Misconduct, Discrimination, and Retaliation can be found here: <https://policylibrary.mines.edu/policy-prohibiting-sexual-misconduct-discrimination-and-retaliation/>

Additionally, student complaints of discrimination, harassment, and retaliation on the basis of a protected class (race, color, religion or creed, sex [including pregnancy, childbirth, related medical conditions, sexual orientation, gender identity, and gender expression], marital status, ethnicity, national origin, age, disability, genetic information, ancestry, and veteran status or military service), are managed through the Office of Equity and Title IX.

SpeakUP@Mines

Students and employees have an additional anonymous channel for reporting concerns through the Whistleblower Policy and the SpeakUP@Mines program.

Consumer Information – Your Right to Know

Colorado School of Mines is committed to transparency and providing students, families, and the public with clear, accurate information about institutional policies, programs, costs, and outcomes. In accordance with federal and state regulations, Mines makes available a comprehensive array of consumer information, including but not limited to: financial aid policies and procedures; tuition and fees; cost of attendance; student rights and responsibilities; campus safety and security reports; completion, graduation, and transfer-out rates; and student loan borrowing information.

Consumer information is available on the Mines Student Right to Know website: <https://ir.mines.edu/student-right-to-know/>. It may also be obtained in paper form upon request from Financial Aid or the Mines Compliance Office. Mines encourages all current and prospective students to review this information to make informed decisions regarding their educational investment and academic planning.